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Case Number: 25PSCV00001 Hearing Date: July 17, 2026 Dept: 6

CASE NAME: David Pack et al. v. Taylor

Morrison of California LLC et al.

Motion for Order to Deem Requests for

Admission, Set Two, to Plaintiff David Pack, Admitted; Requests for Monetary

Sanctions

TENTATIVE RULING

The Court GRANTS defendants Taylor Morrison

of California LLC and William Lyon Homes' Motion for Order to Deem Requests for

Admission, Set Two, to Plaintiff David Pack, Admitted; Requests for Monetary

Sanctions.

The Requests for Admissions, Set Two

propounded by defendants Taylor Morrison of California LLC and William Lyon

Homes on plaintiff David Pack are deemed admitted. The Court imposes sanctions

on plaintiff David Pack and his counsel jointly in the reduced amount of \$1,000.00,

payable to defendants' counsel within 20 calendar days of this order.

Defendants Taylor Morrison of California LLC

and William Lyon Homes are ordered to give notice of the Court's ruling within

five calendar days of this order.

BACKGROUND

This is a torts action based on defendants'

allegedly negligent excavation of property adjoining plaintiffs', which caused

land subsidence through a loss of lateral support. On January 2, 2025, plaintiffs David Pack and Carol Pack (Plaintiffs) filed this action against defendants Taylor Morrison of California LLC; William Lyon Homes; and Does 1 through 20 (Defendants), alleging three causes of action for (1) Negligence; (2) Nuisance; and (3) Preliminary and Permanent Injunction.

On June 5, 2026, defendants Taylor Morrison of California LLC and William Lyon Homes filed the present Motion for Order to Deem Requests for Admission, Set Two, to Plaintiff David Pack, Admitted; Requests for Monetary Sanctions. Plaintiffs did not oppose the motion. On June 26, 2026, defendants filed a Notice of Non-Opposition.

LEGAL STANDARD

When a party fails to serve a timely response to a request for admission, the party propounding the request for admission may move for an order to deem the genuineness of any documents and the truth of any matters specified in the requests admitted. (Code Civ. Proc., § 2033.280, subd. (b).) A party who fails to provide timely responses waives any objections, including ones based on privilege or work product. (Id., § 2033.280, subd. (a).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Id., § 2033.280, subd. (c).)

DISCUSSION

Meet and Confer

Although meeting and conferring is not required before bringing motions to compel, this Court does require parties to meet and confer in person, by telephone, or by videoconference before bringing any motion. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404; Dept. 6 Courtroom Information, p. 2 of pdf.)

Defendants’ counsel declares that on May 22,

2026, he “emailed opposing counsel regarding the status of the RFA responses” that defendants had not received; and that on June 2nd, June 4th, and June 5, 2026, defendants’ counsel telephoned opposing counsel “with no answer.” (Walther Decl., ¶ 5.) “As of June 5, 2026, opposing counsel has not responded to any of my attempts at communicating.” (Walther Decl., ¶ 5; Exhibit B, Email.)

The Court finds counsel’s efforts to meet and confer sufficient.

Analysis

On April 16, 2026, defendants’ counsel served Requests for Admissions, Set Two on plaintiff David Pack via electronic service. (Walther Decl., ¶ 3; Exhibit A.) Responses were due on May 19, 2026. (Walther Decl., ¶ 4.) To date, plaintiff David Pack has not served responses to RFAs, Set Two, nor has plaintiff requested an extension of time. (Walther Decl., ¶ 4.) Because plaintiff David Pack failed to respond, under Code of Civil Procedure section 2033.280, defendants’ Requests for Admissions, Set Two against plaintiff David Pack are deemed admitted.

Regarding sanctions, the imposition of sanctions against a nonresponsive party is mandatory under Code of Civil Procedure section 2033.280, subdivision (c). Defendants’ counsel declares that they have incurred \$2,260 in attorney’s fees in connection with the research, analysis, and preparation of the current motion. (Walther Decl., ¶ 10.) Defendants also anticipated incurring at least another \$712.50 in analyzing any response to the motion, for a total sanctions request of \$2,972.50. (Walther Decl., ¶ 11.) However, plaintiff did not oppose the motion, and thus, defendants did not incur the anticipated \$712.50 in preparing a response to the opposition.

With respect to the hourly rates, the Court finds them excessive for the East Judicial District and also finds the time spent to be unreasonable. “The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]” (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.) The Court will reduce Jonathan R

Walther's hourly rate to \$400.00. The Court finds it unnecessary for a partner to spend time reviewing this motion prepared by an attorney with Walther's experience.

The Court GRANTS Defendants' request for monetary sanctions in the reduced amount of \$1,000.00, comprised of 1.5 hours preparing the motion, and 1.0 hour appearing at the hearing on this motion, for a total of 2.5 hours, multiplied by the hourly rate of \$400.00. Plaintiff David Pack and Plaintiff's attorney of record must pay these monetary sanctions to Defendants' counsel within 20 days of the Court's order.

CONCLUSION

The Court GRANTS defendants Taylor Morrison of California LLC and William Lyon Homes' Motion for Order to Deem Requests for Admission, Set Two, to Plaintiff David Pack, Admitted; Requests for Monetary Sanctions.

The Requests for Admissions, Set Two propounded by defendants Taylor Morrison of California LLC and William Lyon Homes on plaintiff David Pack are deemed admitted. The Court imposes sanctions on plaintiff David Pack and his counsel jointly in the reduced amount of \$1,000.00, payable to defendants' counsel within 20 calendar days of this order.

Defendants Taylor Morrison of California LLC and William Lyon Homes are ordered to give notice of the Court's ruling within five calendar days of this order.